

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2097

By: Menz

AS INTRODUCED

An Act relating to turnpikes; amending 69 O.S. 2021, Section 1711, which relates to tolls; removing authority to revise toll rates; requiring legislative approval for toll increases; stating process of approval or disapproval for toll increases; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 69 O.S. 2021, Section 1711, is amended to read as follows:

Section 1711. The Authority, subject to the provisions hereof, and to Section 2 of this act, is hereby authorized to ~~fix, revise,~~ charge and collect tolls for the use of each turnpike project and the different parts or sections thereof, except for use by law enforcement officers responsible for enforcing the traffic laws and the general laws of the state and federal governments on turnpikes, who shall be entitled to free use of every such project in the performance of official duties connected with such turnpike project, and to contract with any person, partnership, association or corporation desiring the use of any part thereof, including the

1 right-of-way adjoining the paved portion, for placing thereon
2 telephone, telegraph, electric light or power lines, gas stations,
3 garages, stores, hotels, restaurants and advertising signs, or for
4 any other purpose except for tracks for railroad or railway use, and
5 to fix the terms, conditions, rents and rates of charges for such
6 use. Such tolls, subject to the other restrictions hereof, shall be
7 so fixed and adjusted ~~in respect of the aggregate of tolls from the~~
8 ~~turnpike project or projects in connection with which the bonds of~~
9 ~~any issue shall have been issued~~ pursuant to Section 2 of this act
10 as to provide a fund sufficient with other revenues, if any, to pay
11 (a) the cost of maintaining, repairing, and operating such turnpike
12 project or projects, and (b) the principal of and the interest of
13 such bonds as the same shall become due and payable, and to create
14 reserves for such purposes. The tolls and all other revenues
15 derived from the turnpike project or projects in connection with
16 which the bonds of any issue shall have been issued, except such
17 part thereof as may be necessary to pay such cost of maintenance,
18 repair, and operation and to provide such reserves therefor as may
19 be provided for in the resolution authorizing the issuance of such
20 bonds or in the trust agreement securing the same shall be set aside
21 at such regular intervals as may be provided in such resolution or
22 such trust agreement in a sinking fund which is hereby pledged to,
23 and charged with, the payment of (a) the interest upon such bonds as
24 such interest shall fall due, (b) the principal of such bonds as the

1 same shall fall due, (c) the necessary charges of paying agents for
2 paying principal and interest, and (d) the redemption price or the
3 purchase price of bonds retired by call or purchase as therein
4 provided, which are a charge against such fund. The use and
5 disposition of monies to the credit of such sinking fund shall be
6 subject to the provisions of the resolution authorizing the issuance
7 of such bonds or of such trust agreement. Except as may otherwise
8 be provided in such resolution or such trust agreement, such sinking
9 fund shall be a fund for all such bonds without distinction or
10 priority of one over another. The monies in the sinking fund, less
11 such reserve as may be provided in such resolution or trust
12 agreement, if not used within a reasonable time for the purchase of
13 bonds for cancellation as above provided, shall be applied to the
14 redemption of bonds at the redemption price then applicable. Any
15 person who leases, rents, or acquires control of any gas station,
16 garage, store, hotel, or restaurant must have been a resident of, or
17 been doing business in, Oklahoma for the past five (5) years.
18 Notwithstanding anything else herein contained to the contrary, the
19 Corporation Commission of the State of Oklahoma shall exercise the
20 jurisdiction now or hereafter vested in it to regulate and control
21 the operation of motor carriers of passengers and freight, using or
22 desiring to use any turnpike project, in the manner and to the
23 extent that it regulates or controls such carriers using the
24 highways of the state. The Authority shall not discriminate against

1 any group or class or individual member thereof in fixing the amount
2 of toll, rents, or charge for the use of the turnpike project.

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1711.1 of Title 69, unless there
5 is created a duplication in numbering, reads as follows:

6 The Oklahoma Turnpike Authority shall be required to obtain
7 legislative approval before increasing toll rates on any turnpikes
8 in this state. The Legislature shall provide such approval by joint
9 resolution.

10 SECTION 3. This act shall become effective November 1, 2025.

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